

GHANA ARBITRATION AND COMMERCIAL LAW REVIEW

How to Effectively Prepare for Arbitration:
A Structured Approach to Strategy and Advocacy



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HOW TO EFFECTIVELY PREPARE FOR ARBITRATION: A STRUCTURED APPROACH TO STRATEGY AND ADVOCACY

1.Introduction

Arbitration is a structured and strategic dispute-resolution mechanism requiring rigorous preparation by counsel and parties. Effective preparation is essential to ensure procedural efficiency, persuasive advocacy, and the protection of the client's legal and commercial interests.

Preparation for arbitration begins well before the formal commencement of proceedings and continues throughout the life-cycle of the case. It involves legal analysis, evidence gathering, procedural planning, and the development of a coherent litigation strategy.

In the CIMA role-play exercise, participants are required to simulate both pre-arbitral processes and the conduct of arbitral proceedings in a commercial dispute between two companies engaged in a cross-border supply contract.

This memorandum outlines the practical and professional steps required to prepare effectively for arbitration, reflecting international best practices.

2.Initial Case Assessment

The first stage in preparing for arbitration is a comprehensive assessment of the dispute.

Key Tasks

1.Review the Contract

- Identify the arbitration clause.
- Determine the applicable arbitration rules.
- Confirm governing law and seat of arbitration.

3.Assess Jurisdiction

- Confirm that the dispute falls within the scope of the arbitration agreement.
- Identify any jurisdictional risks.

2. Identify the Breach

- Establish the contractual obligations of each party.

Determine whether the breach concerns:

- 1.Non-performance
- 2.Delay
- 3.Defective performance
- 4.Payment default.

4. Evaluate Claims and Defences

- Calculate damages.
- Identify potential counterclaims.
- Assess the strength of legal arguments.

3. Evidence Collection and Preservation

A successful arbitration depends heavily on documentary and testimonial evidence.

Counsel should:

- Collect all relevant documents
- Preserve electronic evidence
- Identify key witnesses
- Obtain technical or expert reports where necessary.



Typical Evidence Includes:

- Contracts and amendments
- Correspondence between the parties
- Delivery records and invoices
- Inspection reports
- Financial records
- Technical specifications
- Expert opinions

Early evidence organisation enables counsel to develop a coherent evidentiary narrative.

4. Pre-Arbitration Strategy

Many disputes are resolved before arbitration formally begins.

The pre-arbitral stage often includes:

1. Notice of Dispute

A formal communication notifying the opposing party that a dispute has arisen.

2. Without-Prejudice Correspondence

Negotiations aimed at settlement while preserving legal rights.

3. Commercial Negotiations

Parties may attempt to:

- Clarify claims
- Narrow issues
- Explore settlement.

This phase reflects the reality that many disputes are resolved before arbitration is triggered.



5. Triggering the Arbitration Clause

Where negotiations fail, the arbitration clause is formally invoked.

Counsel must determine whether:

- Pre-conditions such as cooling-off periods have been satisfied.
- Any escalation clauses (e.g., negotiation or mediation) must first be attempted.
- Failure to comply with contractual pre-conditions may create jurisdictional challenges.



6. Strategic Procedural Planning

Before the tribunal is constituted, parties often negotiate procedural fundamentals.

Key issues to determine include:

- Number of arbitrators
- Seat of arbitration
- Applicable arbitration rules
- Governing law of the contract
- Language of proceedings
- Appointment procedure for arbitrators
- Interim relief considerations.

These decisions significantly affect cost, neutrality, enforceability, and procedural efficiency.

7. Preparation of Core Arbitration Documents

Effective preparation requires drafting key procedural documents.

1. Notice of Dispute

This document initiates arbitration and typically includes:

- Identification of parties
- Arbitration agreement
- Description of dispute
- Relief sought
- Nomination of arbitrator (if applicable).

2. Response to Notice of Arbitration

The respondent may:

- Identification of parties
- Arbitration agreement
- Description of dispute
- Relief sought
- Nomination of arbitrator (if applicable).



8. Preparation for Tribunal Constitution

Once arbitration is commenced, the tribunal must be constituted.

Preparation includes:

- Evaluating potential arbitrators
- Considering expertise and neutrality
- Reviewing potential conflicts of interest
- Preparing for challenge procedures if necessary.

Tribunal composition often determines the credibility and procedural direction of the arbitration..

9. Procedural Strategy After Tribunal Formation

After constitution of the tribunal, counsel must prepare for:

- Case Management Conference
- Key matters discussed include:
 - Procedural timetable
 - Scope of pleadings
 - Document production procedures
 - Confidentiality arrangements
 - Hearing dates
 - Interim relief.

Tribunal composition often determines the credibility and procedural direction of the arbitration..



10. Preparation of Pleadings

The pleadings phase defines the legal and factual framework of the dispute.

Settlement at this stage may significantly reduce legal costs and commercial disruption.

Typical pleadings include:

1. Statement of Claim
2. Statement of Defence
3. Counterclaim
4. Reply and Rejoinder.

Each pleading should:

- Clearly state facts
- Identify legal principles
- Refer to supporting evidence
- Present the requested relief.

11. Consideration of Mediation

Even after arbitration begins, parties may still pursue settlement.

A structured mediation process may include:

1. Preparation
2. Opening session
3. Party presentations
4. Issue identification
5. Private caucuses
6. Negotiation
7. Settlement or return to arbitration.



12. Advocacy Preparation

Advocacy preparation should include:

- Witness preparation
- Expert testimony coordination
- Preparation of hearing bundles
- Development of oral submissions.

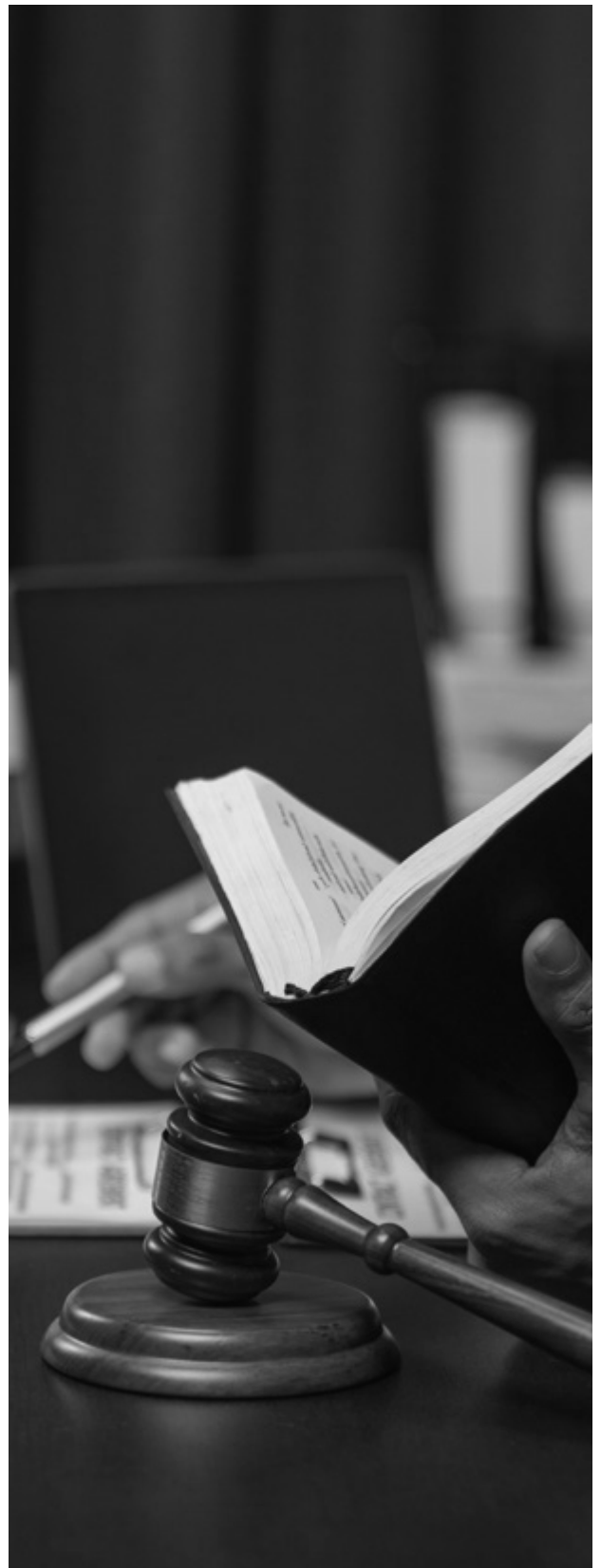
Counsel must also anticipate:

- Tribunal questions
- Jurisdictional objections
- Evidentiary challenges.

13. Practical Best Practices

Effective arbitration preparation requires:

- Strategic Discipline
- Develop a clear theory of the case.
- Documentary Organisation
- Maintain structured document management.
- Procedural Awareness
- Understand applicable arbitration rules.
- Client Engagement
- Ensure the client understands risks and strategy.
- Settlement Awareness
- Remain open to commercial resolution where appropriate.



14. Conclusion

Arbitration is both a legal and strategic process. Successful outcomes depend on disciplined preparation, procedural mastery, and effective advocacy.

- Protect their client's rights
- Present persuasive arguments
- Ensure procedural efficiency
- Enhance the credibility of the arbitral process.

By following the structured approach outlined above, arbitration practitioners can:

For participants in the CIMA programme, mastery of these preparatory stages is essential for developing professional competence in domestic and international arbitration practice

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